

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: September 23, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING SUPPLEMENTAL MOTION FOR PROTECTIVE ORDER

On September 17, 2025, Complainant filed Complainant's Motion for Protective Order ("MPO"). The MPO attaches a proposed protective order. (*See* MPO, at 5-8). Complainant represents that it conferred in good faith with Respondent regarding proceeding jointly on a protective order, but that the Respondent did not agree in principle to proceed jointly. (*Id.*, at 2-3).

On September 19, 2025, Respondent filed Respondent's Response to Motion for a Protective Order ("MPO Response"). Respondent asserts that it did not refuse to agree to a protective order. (MPO Response, at 1). Instead, Respondent asserts that it asked Complainant for a proposed protective order, but Complainant did not provide a copy to Respondent prior to filing the MPO. (*Id.*, at 1). Respondent's attorney indicates that he is prepared to "review the agreement," and he also makes suggestions about what it should contain, but he does not indicate whether he agrees to the proposed protective order. (*Id.*, at 2). Finally, Respondent asserts that the MPO is untimely, though it is unclear in how the MPO is allegedly untimely. (*Id.*, at 1-2).

It appears that the parties agree in principle to a proposed protective order. Accordingly, Complainant is **HEREBY ORDERED** to file a Supplemental Motion for Protective Order ("SMPO") no later than **September 30, 2025**. The SMPO is to attach a revised proposed protective order, to which the parties have both agreed. (*Doe v. Bucciarelli*, Case No. 3:24-cv-00974, 2025 WL 1942405, at *4 (M.D. Tenn. Jul. 15, 2025) (stating that "the defendants do not object to a protective order that is otherwise in line with standard protective orders requiring parties to keep confidential information confidential. The parties, therefore, should work together to structure an agreed protective order."))).

The proposed protective order should also be consistent with the Initial Order and Commission Rules. For example, the current version of the proposed protective order vaguely states that "any filing containing Protected Material shall be filed under seal consistent with Commission procedures. . . ." (*See* MPO, at 6). It would be better for the proposed protective order to reference specifically the Initial Order and/or Commission Rules.

Any issues with discovery, such as complaints about untimely document productions, should first be addressed between the parties. Failure to resolve a dispute should be presented to me in the form of a motion only after the parties have attempted to resolve the dispute themselves.

The parties are again encouraged to work collaboratively regarding discovery and other procedural matters. (See Order Granting Complainant's Combined Motion for Leave to File Reply Out of Time and to Accept Consolidated Over-Length Reply; or, in the Alternative, for Leave to File Three Separate Conforming Responses ("August 26 Order"), at 2). Uncooperative litigation tactics are highly disfavored. (*Celltrust Corp. v. ionLake, LLC*, Case No. 19-cv-2855 (WMW/TNL), 2022 WL 1553558, at *4 (D. Minn. May 17, 2022) (quoting *THK Am., Inc. v. NSK Co., Ltd.*, 157 F.R.D. 637, 647 (N.D. Ill. 1993) ("Courts are too overburdened with heavy caseloads and backlogs to be taxed by parties engaging in uncooperative, dilatory, and obstructionist litigation tactics, or similar stratagems designed to increase the litigation expenses of the opposing party.")). Conversely, cooperation by the parties on non-dispositive matters conserves the time and resources of both the clients and their representatives, allowing the parties to focus on the key legal issues. (See August 26 Order, at 2).

Richard C.

Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge